

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK-----X
FRANCES MENARD and ROSA DEVALLE, ,

Plaintiff,

- against -

THE CITY OF NEW YORK, the NEW YORK CITY
POLICE DEPARTMENT, P.O. STEVEN
MARKSBERRY, P.O. BRENDAN BERGIN, and
JOHN DOES 1-10, agents of the defendants,
names being fictitious as their true identifies
are unknown at this time,

Defendants.

Index No.:

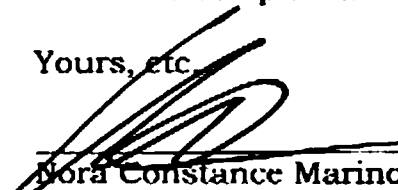
Date Purchased:

SummonsPlaintiff designates New York
County as place of trial.The basis of venue is:
Defendants' residence and
location of incident.Defendant resides at:
New York County. The location
of the incident is New York
County.-----X
To the above named Defendant(s):

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, of if the complaint is not served with this summons, to serve a notice of appearance on the plaintiff's attorney(s) within twenty days after the services of this summons exclusive of the day of service, where service is made by delivery upon you personally within the state, or within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Nassau County, New York
February 22, 2018

Yours, etc.


Nora Constance Marino, Esq.

Attorney for Plaintiffs

FRANCES MENARD and

ROSA DEVALLE

175 East Shore Road, Suite 230

Great Neck, New York 11023

516.829.8399

File No.: 1591

Service to:
See next page:

CITY OF NEW YORK
OFFICE OF THE COMPTROLLER
One Centre Street
Room 1200
New York, NY 10007-2341

CITY OF NEW YORK
LAW DEPARTMENT
100 Church Street
New York, NY 10007

NEW YORK CITY POLICE DEPARTMENT
One Police Plaza
New York, NY 10038

P.O. STEVEN MARKSBERRY
One Police Plaza
New York, NY 10038

P.O. BRENDAN BERGIN
One Police Plaza
New York, NY 10038

P.O. JOHN DOES (1-10)
One Police Plaza
New York, NY 10038

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
FRANCES MENARD and ROSA DEVALLE,

Plaintiff,

VERIFIED COMPLAINT

- against -

Index No.:

THE CITY OF NEW YORK, the NEW YORK CITY
POLICE DEPARTMENT, P.O. STEVEN
MARKSBERRY, P.O. BRENDAN BERGIN, JOHN
DOES 1-10, agents of the defendants, names being
fictitious as their true identifies are unknown at
this time,

Defendants.

-----X

Plaintiffs, by their attorney, NORA CONSTANCE MARINO, ESQ.
complaining of the Defendants herein, respectfully show this Court, and allege
as follows:

PRELIMINARY STATEMENT

1. That at all times hereinafter mentioned, the Plaintiff FRANCES
MENARD ("MENARD ") was and still is a resident of the County of Queens, State
of New York.

2. That at all times hereinafter mentioned, the Plaintiff ROSA DEVALLE
("DEVALLE") was and still is a resident of the County of Bronx, State of New
York.

3. That at all times hereinafter mentioned, defendant CITY OF NEW
YORK ("CITY") was and still is a municipal corporation, duly organized and
existing under and by virtue of the law of the State of New York.

4. That at all times hereinafter mentioned, defendant NEW YORK CITY POLICE DEPARTMENT ("NYPD") was and still is a municipal corporation and/or municipal police department, duly organized and existing under and by virtue of the law of the State of New York.

5. That at all times hereinafter mentioned defendant P.O. MARKSBERRY ("MARKSBERRY") was an agent, servant, and/or employee of defendants City and NYPD; was a member of the NYPD; and was acting for, upon, and in course of and in furtherance of the business of his employers and within the scope of his employment for defendants City and NYPD.

6. That at all times hereinafter mentioned defendant P.O. BERGIN ("BERGIN") was an agent, servant, and/or employee of defendants City and NYPD; was a member of the NYPD; and was acting for, upon, and in course of and in furtherance of the business of his employers and within the scope of his employment for defendants City and NYPD.

7. That at all times hereinafter mentioned, defendants John Does 1-10, names being fictitious as names are unknown at this time, were agents, servants, and/or employees of defendants City and NYPD; were members of the NYPD; and were acting for, upon, and in course of and in furtherance of the business of their employers and within the scope of their employment for defendants City and NYPD.

8. That all times hereinafter mentioned defendants City and NYPD employed police officers and jailors and others hereafter mentioned in this complaint.

9. That at all times hereinafter mentioned, defendants City and NYPD owned, maintained, supervised, managed, operated, inspected and controlled the various jails, police, facilities, police stations, police precincts, police equipment, police vehicles, all hereinafter mentioned in the complaint.

10. That at all times hereinafter mentioned, all of the actions of the officers allege herein were done within the scope and course of their employment with defendants City and NYPD and under color of the state law.

11. That prior to the commencement of this action, and within ninety (90) days after the happening of the incident herein, plaintiff herein served a Notice of Claim in writing upon the defendants THE CITY OF NEW YORK.

12. That a 50-H hearing was held for each claimant.

13. That this action is commenced within one (1) year and ninety (90) days of the date when the incident occurred to the plaintiff.

FACTS

14. Plaintiffs repeat, reiterate, and reallege all of the allegations set forth above.

15. That on or about the 28th day of February, 2017, at approximately 2:34 A.M., at the location known as 75 East 190th Street, County of Bronx, State of New York, Plaintiff MENARD was peacefully conducting himself and lawfully seated in the driver's side of a 2003 Ford Expedition motor vehicle bearing NY License Plate No. GUV9569.

16. That while plaintiff MENARD was lawfully conducting himself as above-described, defendants BERGIN and/or MARKSBERRY and/or JOHN DOES approached plaintiff MENARD and asked him to exit the aforementioned motor vehicle.

17. That defendants BERGIN and/or MARKSBERRY and/or JOHN DOES wrongfully detained, arrested, frisked, searched, assaulted, touched, battered and verbally abused Plaintiff MENARD without justification, authorization, provocation or cause.

18. That Plaintiff MENARD did not violate any law, rule, or regulation, or acted in any way that would justify said actions, detention.

19. That defendants BERGIN and/or MARKSBERRY and/or JOHN DOES arrested Plaintiff MENARD for allegedly operating the aforementioned motor vehicle while under the influence of alcohol or drugs.

20. That plaintiff MENARD was not operating a motor vehicle while under the influence of alcohol or drugs.

21. That the wrongful, unjust, and unlawful apprehension, arrest and detention were carried out without probable cause.

22. That the wrongful, unjust, and unlawful apprehension, arrest and detention were carried out without reasonable suspicion.

23. That the wrongful, unjust, and unlawful apprehension, arrest and detention were carried out without cause of any sort.

24. That the wrongful, unjust, and unlawful apprehension and detention were carried out without any justifiable reason whatsoever.

25. That at all relevant times, defendants BERGIN and/or MARKSBERRY and/or JOHN DOES acted forcibly in detaining Plaintiff MENARD.

26. That thereafter, after the unlawful detention, Plaintiff MENARD was removed from the scene of the wrongful detention and was unlawfully arrested by defendants BERGIN and/or MARKSBERRY and/or JOHN DOES and was taken to a police precinct or some other type of holding area.

27. That throughout this period of time, Plaintiff MENARD was wrongfully unlawfully and unjustifiably held under arrest, deprived of his liberty.

28. That Plaintiff MENARD was charged with operating a motor vehicle while under the influence of alcohol or drugs.

29. That after removing plaintiff MENARD from the subject vehicle, defendants ordered plaintiff DEVALLE, who was seated in the passenger seat, to move the vehicle by operation of the vehicle.

30. That at no time did plaintiff DEVALLE operate the subject vehicle.

31. That despite the fact that plaintiff DEVALLE at no time operated the subject vehicle, defendants arrested defendant DEVALLE for operating a motor vehicle while under the influence of alcohol or drugs.

32. That by reason of the foregoing, Plaintiffs MENARD and DEVALLE have suffered damages.

33. Defendants used excessive force, handcuffed, deprived Plaintiffs of their liberty, freedom, and constitutional rights, despite the fact that Plaintiffs had not committed a crime or violation.

34. Defendants detained and wrongfully arrested Plaintiffs and took Plaintiffs into custody against their will.

35. That despite the fact that Defendants knew that there was no probable cause to believe that Plaintiffs committed any crime, one or more than one of the Defendants authorized and approved the formal arrest of the Plaintiffs.

36. That the Defendant officers arrested Plaintiffs despite the fact that they knew that the no crimes or violations were committed and that there was no probable cause or justification for such an arrest and/or detention.

37. That at all times, the officers acted within the scope of their employment of Defendants City and NYPD and under the authority of color of state law as police officers.

38. Although the Defendants knew that detaining and arresting Plaintiffs when they had no right to do so, in violation of Plaintiffs' constitutional rights, the Defendants processed Plaintiffs generating misleading and false accusatory instruments in order to lay charges against plaintiffs even though Defendants knew or had reason to know that they were making an illegal arrest.

39. That said arrest constituted a false arrest and false imprisonment and deprived plaintiffs of their personal freedom and civil rights, and led to a malicious prosecution.

40. That Defendants, their officers, agents, servants and/or employees were responsible for Plaintiffs' arrest, assault and detention during this period of

time.

41. That at all times mentioned the unlawful, wrongful and false arrest of Plaintiffs was without right and without probable or reasonable cause.

42. That the Defendants acted with a knowing, willful, wanton, malicious, gross, reckless, unlawful, unreasonable and flagrant disregard of Plaintiffs' rights, privileges, welfare and well-being and were guilty of egregious and gross misconduct towards them.

43. That all of the foregoing occurred without any fault or provocation of the part of the Plaintiffs.

44. The direct and proximate results of the Defendants' acts are that plaintiffs suffered severe and permanent injuries of a physical and psychological nature.

45. That defendant violated plaintiff's first, fourth, fifth, and fourteenth amendments of the United States Constitution and the New York State Constitution, and New York State law.

FIRST CAUSE OF ACTION
FALSE ARREST

46. Plaintiffs repeat, reiterate, and reallege all of the allegations set forth above.

47. Defendants used excessive force, handcuffed, threatened, videotaped and deprived Plaintiffs of their liberty, freedom, and constitutional rights, despite the fact that Plaintiffs had not committed a crime or violation.

48. That the Defendant officers arrested Plaintiffs despite the fact that they knew that the no crimes or violations were committed and that there was no probable cause or justification for such an arrest and/or detention and/or videotaping.

49. That at all times, the officers acted within the scope of their employment of Defendants NYPD and under the authority of color of state law as police officers.

50. The aforescribed constitutional violations are all actionable under and pursuant to New York State Law, the New York State and Federal Constitution.

51. Although the Defendants knew that detaining and arresting Plaintiffs when they had no right to do so, in violation of Plaintiffs' constitutional rights, the Defendants criminally processed the Plaintiffs, generating misleading and false accusatory instruments in order to lay charges against Plaintiffs, even though Defendants knew or had reason to know that they were making an illegal arrest.

52. The direct and proximate results of the Defendants' acts are that Plaintiffs suffered severe and permanent injuries of a physical and psychological nature.

SECOND CAUSE OF ACTION
NEGLIGENT HIRING, TRAINING, SUPERVISION, AND
RETENTION UNDER NEW YORK STATE LAW

53. Plaintiff repeats, reiterates and realleges all of the allegations set forth above.

54. Defendant NYPD negligently hired, trained, supervised, and retained the defendant officers; Defendant NYPD was careless and reckless in the hiring, training, supervision, overseeing, and retention of Defendant officers.

55. As a result of this negligent hiring, training, supervision, overseeing, and retention, Plaintiffs have suffered and continues to suffer damages, constitutional violations, as well as other damages.

THIRD CAUSE OF ACTION
MONELL CLAIM PURSUANT TO 42 U.S.C § 1981, 1983, 1985, 1986
AND RESPONDEAT SUPERIOR

56. Plaintiff repeats, reiterates and realleges each and every allegation contained herein as if fully set forth at length herein.

57. All of the acts and omissions by the individual Defendants, described above were carried out pursuant to overlapping policies and practices of the NYPD which were in existence at the time of the conduct alleged herein and were engaged in with the full knowledge, consent and cooperation and under the supervisory authority of Defendant NYPD.

58. Defendant NYPD, by their policy-making agents, servants and employees, authorized sanctioned and/or ratified the individual Defendants' wrongful acts and/or failed to prevent or stop those acts and/or allowed those acts to continue.

59. Defendants detained, arrested, assaulted, battered, and victimized Plaintiffs in the absence of any evidence of probable cause or reasonableness to do so, notwithstanding their knowledge that said assault and battery would jeopardize Plaintiff's liberty, well-being, safety and constitutional rights.

60. Defendant NYPD has grossly failed to train and adequately supervise its police officers in the fundamental law of use of reasonable detention and/or arrest.

61. The direct and proximate results of the Defendants' acts are that Plaintiff suffered severe and permanent injuries of a physical and psychological nature.

FOURTH CAUSE OF ACTION
MUNICIPAL AND/OR GOVERNMENTAL LIABILITY

62. Plaintiff repeats, reiterates, and realleges all of the allegations set forth above.

63. That defendant NYPD, its employees, agents and/or servants, failed to take any necessary steps to prevent this occurrence; failed to properly train its employees, agents and/or servants in arrest procedures; failed to control and supervise its employees, agents and/or servants; failed to prevent the aforesaid detention, incarceration, violation of constitutional rights, and permanent psychological injuries to the Plaintiffs; and were otherwise reckless, careless, and negligent.

64. That as a result of the above referenced negligence; Plaintiffs were

caused to sustain damages and their constitutional rights were violated.

FIFTH CAUSE OF ACTION
EXCESSIVE FORCE

65. Plaintiffs repeats, reiterates, and realleges all of the allegations set forth above.

66. Plaintiffs did not resist the orders during the above described incident and did not take any actions necessitating the use of excessive physical force by Defendants.

67. As a direct and proximate result of the unlawful excessive force used against Plaintiffs by Defendants deprived Plaintiffs of their Constitutional rights in violation of the Fourth, Eighth and Fourteenth Amendments of the Constitution and are liable to Plaintiff pursuant to 42 U.S.C. § 1983.

68. Defendant officers used excessive force against Plaintiffs with knowledge that Plaintiffs did not commit a crime and that the arrest and force used to effectuate the arrest was excessive, unnecessary and without cause or grounds therefore.

SIXTH CAUSE OF ACTION
MALICIOUS PROSECUTION

69. Plaintiff repeats, reiterates and realleges all of the allegations set forth above.

70. That one of or more than one of the Defendant officers prepared

formal accusatory instruments, with the knowledge that no crime or violation had occurred.

71. That one of or more than one of the Defendant officers prepared and filed charges against Plaintiffs with malice and the intent of depriving Plaintiffs of their liberty and right to not have their person seized knowing they had no cause or grounds to do so.

72. That one of or more than one of the Defendant officers prepared and filed these charges against Plaintiffs with the intent to deprive Plaintiffs of their constitutional rights.

73. That Defendant NYPD, its employees, agents and/or servants, failed to take any necessary steps to prevent this occurrence; failed to properly train its employees, agents and/or servants in arrest procedures; failed to control and supervise its employees, agents and/or servants; failed to prevent the aforesaid pain and suffering, defamation, incarceration and permanent psychological injuries to the plaintiffs; and were otherwise reckless, careless and negligent.

SEVENTH CAUSE OF ACTION
ABUSE OF PROCESS

74. Plaintiffs repeats, reiterates, and realleges all of the allegations set forth above.

75. Without Plaintiffs' consent, one or more of the Defendant officers harmfully and offensively touched Plaintiffs by grabbing them, restraining

them, handcuffing them, and unlawfully and unconstitutionally deprived the Plaintiffs of their liberty and freedom.

76. That one or more of the defendant officers threatened plaintiff without justification, provocation or cause.

77. The Defendants abused their authority and abused their position; Defendants abused and violated the public trust and in particular the trust of Plaintiff. Defendants had no right under the laws of the land to detain, arrest, harass, incarcerate, or prosecute the Plaintiffs, yet they chose to regardless. The Defendant officers who did not detain, arrest, harass, incarcerate, or prosecute the Plaintiff, should there be any, are liable to Plaintiff for their failure to protect and intervene, and a violation of their duty to intervene, safeguard, and protect the Plaintiff.

EIGHTH CAUSE OF ACTION
INFLECTION OF EMOTIONAL DISTRESS

78. Plaintiff repeats, reiterates, and realleges all of the allegations set forth above.

79. Defendants intentionally and deliberately inflicted emotional distress upon Plaintiff; defendants negligently inflicted emotional distress upon Plaintiffs; by maliciously detaining them, grabbing them, restraining them, handcuffing them, falsely arresting them, threatening them; and depriving the Plaintiffs of their liberty and freedom, and in abusing Plaintiffs.

NINTH CAUSE OF ACTION
NEGLIGENCE

80. Plaintiff repeats, reiterates, and realleges all of the allegations set forth above.

81. That the aforesaid Defendants, without cause or provocation, negligently, carelessly, and recklessly detained, arrested, and threatened the Plaintiffs despite knowing that no laws, rules, or regulations were violated, without grounds, and without cause.

TENTH CAUSE OF ACTION
PUNITIVE DAMAGES

82. Plaintiff repeats, reiterates, and realleges all of the allegations set forth above.

83. The acts, conduct and behavior of the Defendants warrant punitive damages.

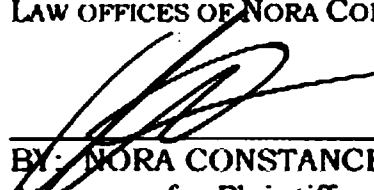
As a result of defendants' actions, plaintiff suffered damages.

WHEREFORE, Plaintiff demands judgment against Defendants, and each of them, on all of the foregoing causes of action, in the form of compensatory damages for his pain and suffering, loss of enjoyment of life, economic loss, and other losses and damages, in an amount that exceeds the jurisdictional limits of all lower courts that otherwise would have jurisdiction in the matter, and Plaintiff further demands punitive damages on all causes of action, in an

amount to be determined by the trier of fact, together with attorney's fees, costs, and disbursements.

Dated: February 22, 2018
Nassau County, NY

Yours, etc.,
LAW OFFICES OF NORA CONSTANCE MARINO


 BY: NORA CONSTANCE MARINO, ESQ.
 Attorneys for Plaintiffs
 175 East Shore Road, Suite 230
 Great Neck, NY 11023
 516-829-8399
nora@marinojustice.com

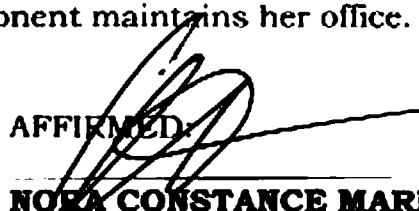
ATTORNEY VERIFICATION

STATE OF NEW YORK)
) ss.:
COUNTY OF NASSAU)

NORA CONSTANCE MARINO, an attorney duly licensed to practice law, affirms under penalties of perjury, that I am the attorney of record for plaintiffs in the within action; that I have read the foregoing **COMPLAINT** and know the contents thereof; that the same is true to my own knowledge, except as to the matters therein alleged to be on information and belief, and as to those matters, I believe it to be true. The reason this verification is made by me and not by plaintiffs named herein, is that the plaintiffs resides in a different county then that which your deponent maintains her office.

DATED: February 22, 2018
Nassau County, NY

AFFIRMED:


NORA CONSTANCE MARINO

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

Index No.:

FRANCES MENARD AND ROSA DEVALLE,

*Plaintiff(s),**- against -*

THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, P.O. STEVEN MARKSBERRY, P.O. BRENDAN BERGIN, AND JOHN DOES 1-10, agents of the defenadnts, amcs being fictitious as their true identifies are unknown at this time,

*Defendant(s).***SUMMONS AND COMPLAINT**

Law Offices Of
NORA CONSTANCE MARINO
Attorney for Plaintiff
Office and Post Office Address, Telephone
175 East Shore Road
Great Neck, New York 11023
PHONE: 516.829.8399
FAX: 516.829.4699

Pursuant to 22 NYCRR 130-1.1, the undersigned, an attorney admitted to practice in the courts of New York State, certifies that, upon information and belief and reasonable inquiry, the contentions contained in the annexed document are not frivolous.

Dated: _____ 20__

Nora Constance Marino**To :***Service of a copy of the within
is hereby admitted.*

Dated: _____ 20__

Attorney(s) for:**PLEASE TAKE NOTICE :**☐ NOTICE that the within is a (certified) true copy of a**OF ENTRY:** duly entered in the office of the clerk of the within named court on _____ 20__☐ NOTICE OF that an order of which the within is a true copy will be presented for settlement to the